Amrita Sinha, had "told [him] some days back" that "Justice Soumen Sen called her in [his] chamber on the last day before (Christmas) vacation" and dictated three things. Firstly, that Abhishek Banerjee—TMC MP, nephew of chief minister Mamata Banerjee and the party's national general secretary—"has a political future, he should not be disturbed". She was also told that "live-streaming shall be stopped in Justice Amrita Sinha's court" and, finally, that the two writ petitions being heard by Justice Sinha and involve Abhishek's name "are to be dismissed". Justice Gangopadhyay wrote that this alleged conversation was first intimated to him by Justice Sinha and later to the Chief Justice of the HC, who in turn communicated it to the Chief Justice of India.

Furthermore, the judge wrote in his order that Justice Sen has been "under an order of transfer" for over two years and "is acting here as a judge defying the Supreme Court Collegium's recommendation (dated September 16, 2021)" that he be shifted "from this court to Odisha High Court". He questioned the identity of those who are protecting Justice Sen in spite of him allegedly ignoring an order from the SC collegium.

With Justice Gangopadhyay's serious allegations becoming public, the Supreme Court took suo motu cognisance of the issue on January 26. A five-judge bench led by the CJI D.Y. Chandrachud, and comprising Justices Sanjiv Khanna, B.R. Gavai, Surya Kant and Aniruddha Bose, was constituted to hear the matter. The bench heard it on January 27 in a special sitting. Issuing notice to the CBI, the petitioner on whose plea the CBI probe was ordered and the government of West Bengal—on whose plea it was stayed by the division bench—the SC stayed all further proceedings before the single-judge bench and the division bench of the Calcutta HC and ordered an interim stay on Justice Gangopadhyay's last, inflammatory order.



SOUMEN SEN
Judge, Calcutta High Court



AMRITA SINHA
Judge, Calcutta High Court

JUSTICE GANGOPADHYAY ACCUSED JUSTICE SEN OF ACTING FOR A PARTY AND THREATENING JUSTICE SINHA

In that order, Justice Gangopadhyay raised questions over the validity of the order passed by the division bench of justices Sen and Kumar, observing that "no recording of any urgency in the matter" was found. He added that when his order was stayed, "there was neither any memo of appeal nor any impugned order before the court.... No rule has been shown to me that an appeal can be preferred and the order can be passed thereon in this High Court without the impugned order and without the memorandum of appeal."

The issue was brought up during the hearing by the five-judge SC bench by Attorney General R. Venkataramani and the Solicitor General of India Tushar Mehta, who said that an earlier SC order prohibits any higher court from passing an interim order without a copy of the memo or the impugned order (the order which is challenged) and just on an oral request. On January 29, the SC bench transferred the case from the HC to the apex court. It also asked all aforementioned parties to file their petitions over the next three weeks. The matter has been listed on February 19.

On January 30, Justice Sen finally reacted to the affair. "Enough is enough.... This court has been insulted.... The job of a justice is to pass orders. I have nothing to say. He (Justice Gangopadhyay) has commented on me, but I have respect for him," he said.

Justice Gangopadhyay too has been chastised by the country's apex court earlier. On April 28, 2023, hours after the SC ordered the shifting of a case related to Abhishek from his roster, the HC judge had passed an order directing the Supreme Court secretary to send him documents shown to the bench of CJI Chandrachud and Justice P.S. Narasimha. The CJI took cognisance of this indiscretion and constituted a bench of Justices A.S. Bopanna and Hima Kohli, which permanently stayed Justice Gangopadhyay's order, terming it "not proper" and against "judicial discipline".

Predictably enough, the TMC refuted Justice Gangopadhyay's charges. "He is no more a judge and is acting as the counsel of Justice Sinha. What he said about a fellow judge amounts to shameless political speech," said TMC state general secretary Kunal Ghosh. The BJP seized the chance to hit out at the ruling party. "The apparent lawlessness and indiscipline in the HC is a result of the TMC heckling judges and their families," said the Bengal BJP's chief spokesperson Samik Bhattacharya. In all the melee, the real issue seems to have been lost. ■